

SENATE BILL 1906

By Akbari

AN ACT to amend Tennessee Code Annotated, Title 39,
Chapter 13, relative to the transmission of
infectious diseases.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-13-109(c), is amended by adding the following as a new subdivision:

(4) It is an affirmative defense to prosecution under this section, which must be proven by a preponderance of the evidence, that the person infected with HIV was in compliance with a treatment regime prescribed by the person's healthcare provider to medically suppress the risk of HIV transmission.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.